

BEFORE THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS AND THE
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2014-4090 & 2014-4089

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
REGISTRATION TO PRACTICE AS A REGISTERED PSYCHOTHERAPIST IN THE
STATE OF COLORADO AND THE LICENSE TO PRACTICE AS A PROFESSIONAL
COUNSELOR IN THE STATE OF COLORADO OF KENNETH CRAMER, RP NO. 11964,
AND LPC NO. 11903,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Registered
Psychotherapists and the State Board of Licensed Professional Counselor Examiners (together,
“Boards”) and Kenneth Cramer (“Respondent”) as follows:

1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order (“Order”).
2. Respondent was registered to practice as a psychotherapist (“RP”) and licensed to practice as a professional counselor (“LPC”) in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of case numbers 2014-4090 and 2014-4089. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.
4. Respondent denies the following allegations, but acknowledges that if the Board were to prove the allegations at hearing, they would constitute a prima facie case of a violation of the Mental Health Practice Act, and would subject Respondent to discipline. The Board’s allegations are as follows:
 - a. On or about August 12, 2014, Respondent failed to maintain appropriate boundaries with client CM, including renting a house from CM.
 - b. On or around August 28, 2014, Respondent failed to report his own suicidal thoughts/tendencies to the Board.

c. Respondent misrepresented his credentials by listing himself as a Ph.D. Candidate in multiple advertisements.

5. Although Respondent disputes the allegations in paragraph 4 above, Respondent admits that if the allegations were proven by the Board at hearing, Respondent would have violated §12-43-222(1)(g), (i), and f(I), C.R.S.

PERMANENT RELINQUISHMENT

6. Respondent hereby permanently relinquishes his registration and the right to practice as a RP in the State of Colorado and his license and the right to practice as a LPC in the State of Colorado, commencing from the effective date of this Order. Respondent requests that the Boards accept such relinquishments. Such relinquishments shall have the same force and effect as revocations ordered by the Boards. Respondent agrees not to reapply for registration as a RP or licensure as a LPC in the State of Colorado at any time in the future.

7. Following relinquishment of his registration and license, Respondent shall not perform any act requiring a registration or license to practice in the State of Colorado.

TERMS AND CONDITIONS

8. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

9. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

10. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

11. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

12. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

13. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

15. This Order shall be admissible as evidence at any hearing held before the Boards.

16. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT



KENNETH CRAMER
RP NO. 11964
LPC NO. 11903

AGREED TO AND ORDERED BY:

BOARD OF REGISTERED
PSYCHOTHERAPISTS AND BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS


CATHERINE RODRIGUEZ
Program Director

Effective this 6th day of
April, 2016.